

HOUSE No. 4642

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, October 20, 2025.

The committee on Education, to whom were referred the petition (accompanied by bill, House, No. 669) of Alice Hanlon Peisch relative to teacher preparation and student literacy; and the petition (accompanied by bill, House, No. 698) of Danilo A. Sena, Simon Cataldo and Patrick Joseph Kearney relative to early literacy instruction and student outcomes, reports recommending that the accompanying bill (House, No. 4642) ought to be pass.

For the committee,

KENNETH I. GORDON.

HOUSE No. 4642

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to teacher preparation and student literacy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 38G of chapter 71 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in line 283, the word “student” and replacing
3 it with the following word: “candidate.”

4 SECTION 2. Section 38G of said chapter 71 of the General Laws is hereby further
5 amended by inserting, after the word “personnel”, in line 281, the words: “provided that policies
6 and guidelines must include alignment with evidence-based literacy instruction for educator
7 preparation programs to be approved” and by striking out, in lines 286-288, the words, “The
8 college or university or school district or other institution shall also provide the commissioner
9 with a transcript of the student’s record,” and replacing it with the following:-

10 The approved program shall be evaluated by the commissioner annually to ensure that
11 candidates are well prepared to meet the needs of all students in the commonwealth. Through
12 this review, the commissioner of education shall meaningfully differentiate the performance of
13 individual program providers based in part on program quality and outcomes of candidates once

they are employed. The review shall include, but not be limited to, program implementation of evidence-based preparation in the five research-based areas in reading instruction, i.e., phonemic awareness, phonics, fluence, vocabulary, and comprehension, and the extent to which new teachers' effectiveness addresses persistent disparities in achievement. The commissioner shall annually publish data on these programs, including the current approval status, enrollment, demographics of candidates, areas of licensure being pursued and employment rate of graduates.

SECTION 3. Section 38G of said chapter 71 of the General Laws is hereby further amended by inserting after the word "record" in line 288, the following paragraph:-

All applications for reviewing and approving preparation programs under this section shall be accompanied by a fee to be determined annually by the secretary of administration and finance under the provisions of section 3B of chapter 7, which shall be sufficient to allow the department to carry out the responsibilities outlined in this section.

SECTION 4. Section 57A of chapter 71 of the General Laws is hereby amended by adding at the end thereof the following sentence:-

The commissioner shall annually publish data on which screening instruments are employed by each school district in the commonwealth, including but not limited to grades Pre-K-3 literacy screening assessments and whether the screening instruments are approved by the department of elementary and secondary education.

SECTION 5. Said chapter 71 of the General Laws is hereby amended by inserting after section 57A the following section:-

34 Section 57B. The department of elementary and secondary education, in consultation
35 with the department of early education and care, shall issue guidelines to districts requiring
36 screening protocols for reading for all students in grades kindergarten through third grade using
37 evidence-based screeners. Such guidelines shall include a threshold at which a student is
38 determined to be “significantly below” the grade level benchmark. “Evidence-based screeners,”
39 as used herein, shall mean tools and assessments that can be used to identify students at risk for
40 poor academic outcomes as determined by the department of elementary education and
41 secondary education. The commissioner shall annually publish data on which screening
42 instruments are employed by each school district in the commonwealth to conduct reading
43 screening.

44 Each district shall, not less than twice per year, assess each student’s reading ability and
45 progress in literacy skills from kindergarten through at least third grade, using a screening
46 instrument approved by the department of elementary and secondary education. Consistent with
47 section 2 of chapter 71B of the general laws and the department's dyslexia and literacy
48 guidelines, if such screenings determine that a student is significantly below relevant
49 benchmarks for age-typical development in specific literacy skills, the district shall determine
50 which actions within the general education program will meet the student's needs, including
51 differentiated or supplementary evidence-based reading instruction and ongoing monitoring of
52 progress. Within 30 school days of a screening result that is significantly below the relevant
53 benchmarks, the district shall inform the student's parent or guardian of the screening results and
54 the school's response and shall offer the opportunity for a follow-up discussion.

55 SECTION 6. Section 1E of chapter 69 of the General Laws is hereby amended by adding
56 at the end of the first paragraph the following paragraphs:-

Curricula selected to meet the curriculum frameworks for elementary literacy must (a) include instruction in the five research-based areas in reading instruction, i.e., phonemic awareness, phonics, fluency, vocabulary, and comprehension — including oral reading/communication skills, and reading comprehension, (b) utilize and be based upon scientifically-based reading standards. As used in this section, scientifically-based reading standards are those that: (i) apply rigorous, systematic, and objective observational or experimental procedures to obtain valid knowledge relevant to reading development, reading instruction, and reading and writing difficulties; (ii) are based upon research that employs systematic, empirical methods that draw on observations or experiment; involves rigorous data analyses that are adequate to test the stated hypothesis and justify the general conclusions drawn; rely on measurements or observational methods that provide valid data across evaluators and observers and across multiple measurements and observations; and have been accepted by a peer-reviewed journal or approved by a panel of independent experts through a rigorous, objective, and scientific review; (iii) incorporate best practices concerning how proficient reading and writing develop, why some children have difficulties developing key literacy skills, and how schools can best assess and instruct early literacy, including the use of evidence-based literacy instruction practices to promote reading and writing achievement.

; (iv) are used in core or general instruction, supplemental instruction, intervention services, and specialized reading instruction provided in accordance with an individualized education plan; (v) have a demonstrated record of success in increasing students' competency in the areas of, vocabulary development, oral language, and comprehension and in building mastery of the foundational reading skills of phonological and phonemic awareness, alphabetic principle, phonics, writing and spelling, and text reading fluency; and (vi) are able to be differentiated in

order to meet the individual needs of students. With the exception of curricula pre-approved by the department in accordance with paragraphs (c) and (d) of Section 7 herein --paragraphs (c) and (d) of section 1E ½ of this chapter -- curricula selected to meet the curriculum frameworks may not include implicit and incidental instruction in word reading, visual memorization of whole words, guessing from context, and picture cues, which may also be known as MSV or three-cueing.

SECTION 7. Chapter 69 of the General Laws is hereby amended by adding, after Section 1E and before Section 1F, a new Section 1E 1/2, which states as follows:

(a) The department shall provide tools and resources to aid districts in providing professional development aligned with evidence-based literacy instruction and scientifically-based reading standards for literacy teachers, paraprofessionals, and reading specialists in grades pre-kindergarten through third grade.

(b) The department shall create and maintain:

i. A list of department-approved professional development programs and vendors aligned with evidence-based literacy instruction best practices and scientifically-based reading standards; and

ii. A set of online training modules available and free to all teachers that provide training on the foundational practices and pedagogy aligned with evidence-based literacy instruction best practices and scientifically-based reading standards.

(c) Notwithstanding the requirements and limitations of section 1E of this chapter, nothing shall prevent any district from petitioning the department for permission to use

101 elementary literacy instruction curriculum that does not then-appear among the curricula set out
102 by the department. In determining whether to approve a district's petition for a curriculum that is
103 not then-approved by the department, the department shall assess whether the district's
104 curriculum utilizes scientifically-based reading standards, as defined by section 1E of this
105 chapter.

106 (d) Notwithstanding the requirements and limitations of Section 1E of this chapter, the
107 department shall permit districts to apply to participate in pilot programs that utilize elementary
108 literacy methods that do not rely on then-current scientifically-based reading standards, as that
109 term is defined in Section 1E of this chapter. In determining whether to approve a district's
110 application to participate in a pilot program, the department shall assess: (i) the degree to which
111 the pilot's instructional approach is already supported by some degree of scientific research; (ii)
112 the methodology of the pilot and the likelihood that the pilot's results will be sufficiently reliable
113 to contribute to the body of scientifically-based literacy instruction knowledge; (iii) the
114 population that will be instructed using the pilot curriculum, and any demographic differences
115 between that population and the district's student body at large; (iv) the duration of any such
116 pilot and the amount of time and extent that any student participating in said pilot is exposed to
117 instruction that is not-then scientifically-based and (v) any other considerations that the
118 department deems relevant to the quality and fairness of the pilot program's execution and
119 impact on student learning.

120 SECTION 9. Subsection (c)(ii) of section 1S of chapter 69 of the General Laws, as so
121 appearing, is hereby amended by striking out, in line 41, the words "and (J)", and inserting in
122 place thereof the following words:- (J) implementing literacy instructions based on scientifically-
123 based reading standards; and (K).

SECTION 10. Subsection (c)(ii) of section 1S of chapter 69 of the General Laws is hereby amended by striking out the words from “that if a district” in line 43 to the end of the paragraph and replacing with the language: “any such program must adhere to scientifically-based reading standards as set out by section 1E 1/2 of this chapter.”

SECTION 11. Section 1S of chapter 69 of the General Laws is hereby amended by adding, after paragraph (d), the following two paragraphs:

(e)(1) The department shall identify a list of data requirements for reporting purposes in order to ensure that districts are implementing literacy instruction that is consistent with department-approved literacy curricula as set forth in section 1E of this chapter. The department shall publish reporting requirements by the start of each school year. (2) Beginning in 2026, each district shall report annually to the department, on or before October 31, the data reporting requirements set out in subsection (a)(1).

(b) Annually, beginning no later than December 31, 2027, the department shall aggregate data collected from each district under this section, prepare and publish on the department’s website a report displaying such data, and file the report with the clerks of the senate and house of representatives and the joint committee on education.

SECTION 12. Section 1S of chapter 69 shall be amended by adding after paragraph (g) the following paragraphs:

(h) Notwithstanding any general law or special law to the contrary, the department of elementary and secondary education shall, subject to appropriation, develop and administer a 2-year pilot program, in partnership with a college or university or school or district or other institution offering an approved preparation program pursuant to Section 38G of Chapter 71 of

the General Laws, for teacher apprenticeship during which participants shall complete a paid teaching apprenticeship for two full school years in a high-needs district in the classroom with a highly proficient mentor teacher, as determined by the department of elementary and secondary education using factors including but not limited to recent evaluation ratings, student growth data and demonstrated evidence-based practices. As used herein, “high needs districts” shall be defined as: schools or districts with a high percentage of low-income students and English learners, which may include schools or districts implementing turnaround plans. The program shall provide sufficient funds to candidates to support earning a competitive wage, including but not limited to support for childcare, transportation, textbooks and other core expenses, to ensure a diverse cohort are able to fully participate. In administering the pilot program, the department of elementary and secondary education shall promulgate regulations defining the apprenticeship and the target candidates to be admitted to the program.

The department of elementary and secondary education shall file a report with the clerks of the house of representatives and the senate and the joint committee on education no later than one year after the completion of the pilot on the outcome of the pilot program. The report shall include data on the demographics of participants, licensure pass rates on the MTEL and hiring rates and an assessment of the feasibility of applying for status as a United States Registered Apprenticeship. The department of elementary and secondary education shall file a report with the clerks of the house of representatives and the senate and joint committee on education no later than three years after the completion of the pilot that includes, at a minimum, an evaluation of the impact of apprentices on student outcomes as compared to teachers not participating in the pilot using student growth measures and an assessment of the feasibility of expanding to a two-year teacher apprenticeship for all teacher candidates or all candidates in high-needs districts.

13(i) The department of elementary and secondary education shall conduct a study and report on potential initiatives to incentivize diverse and highly effective educators to work in high-needs districts, including incentives to recruit new and diverse teachers to high-needs districts and policies or practices to retain diverse and highly effective teachers currently teaching in high-needs districts. “High-needs districts,” as used herein, shall be defined as: schools or districts with a high percentage of low-income students and English learners, which may include schools or districts implementing turnaround plans.

(j) Not later than January 1, 2027, the department of elementary and secondary education shall file a report, including any analysis, recommendations or proposed legislation, with the clerks of the senate and house of representatives and the chairs of the joint committee on education. The report shall include, but not be limited to: (i) a survey of educator salaries and benefits across school districts; (ii) an assessment of potential incentives to attract highly effective educators to high-needs districts; (iii) the feasibility of financial incentives for achieving National Board certification; (iv) the feasibility of establishing a master educator corps program, to be administered by the department, to incentivize educators that have achieved a certain level of mastery to transfer to high-needs districts; (v) an assessment of a salary parity scale for any educators that have switched to high-needs districts; (vi) the feasibility of a statewide salary parity scale that takes into consideration the relative needs of the district and state and municipal contribution and ability to fund and incentivizes master professional educators to relocate to high-needs districts; (vii) any other program, as determined by the department, to help meet the educator requirements of high-needs districts; and (viii) an assessment of legislation necessary to achieve these objectives.

191 SECTION 13. Section 55A of chapter 15, as appearing in the 2022 Official Edition, so
192 appearing, is hereby amended by striking the language “(6) review the progress of overall
193 student achievement and; (7) evaluate student performance, school and district management,
194 overall district governance and any other areas deemed necessary by the office.” in lines 56
195 through 59, and replacing it with the following language:- “(6) evaluate the alignment of literacy
196 instructional materials and curricula with department-recommended high quality literacy
197 instructional materials and curricula, as per section 1E of chapter 69; (7) review the progress of
198 overall student achievement and; (8) evaluate student performance, school and district
199 management, overall district governance and any other areas deemed necessary by the office.”

200 SECTION 14. The department shall promulgate such rules and regulations as it deems
201 necessary to implement the provisions of this chapter.